

Memorandum of Agreement

The signatory Parties to this Memorandum of Agreement ("Agreement") agree as follows:

WHEREAS, Rita Dankowski (Ms. Dankowski) is working pursuant to an employment contract with the Board of Education in the position of Administrative Assistant Business Services/Administrative Assistant Pupil Services, effective August 1, 2021, in accordance with her non-teaching employee continuing contract; and

WHEREAS, prior to August 1, 2021, Ms. Dankowski was a member of the Brecksville-Broadview Heights Organization of Support Staff (BOSS), and during that time earned certain accrued but unused vacation leave days; the Parties disagree regarding her entitlement to such vacation leave following her removal from the BOSS bargaining unit; and

WHEREAS, in lieu of the further dispute regarding Ms. Dankowski's entitlement to such vacation leave days after her position was removed from the BOSS bargaining unit, the Parties wish to resolve such dispute without further disagreement and/or delay, in the best interest of both Parties.

NOW THEREFORE, in consideration of the mutual promises set forth below, the Parties agree as follows:

1. In full and final settlement of any and all claims by the Ms. Dankowski regarding Ms. Dankowski's vacation leave entitlement on or before the execution date of this Agreement, the Parties agree and acknowledge that Ms. Dankowski shall receive an additional ten (10) vacation days in her vacation leave accrual, effective within fifteen (15) calendar days of the execution of this Agreement by both Parties. The District shall convert such ten (10) days of additional, accumulated but unused vacation, which shall be paid on the next available pay date at a rate of \$180.56 per day (\$1,805.60 total for the 10 days), subject to applicable taxes and withholdings.
2. This Agreement shall not in any way change/amend Ms. Dankowski's non-teaching employee continuing contract, and/or increase her entitlement to vacation leave in any way moving forward. For the August 1, 2022-July 31, 2023 contract year and thereafter, Ms. Dankowski shall continue to receive vacation leave as applicable and in accordance with the Administrative Support Personnel handbook.
3. Ms. Dankowski, together with her heirs, beneficiaries, personal representatives, assigns, attorneys, and agents, past, present and future, knowingly and voluntarily, irrevocably and unconditionally releases, acquits and fully and forever discharges the Brecksville-Broadview Heights City School District Board of Education (together with the Board's elected members, their officers, employees, agents, directors and legal representatives, both past and present and in their individual and official capacities) (collectively "Board"), from any and all possible presently known or unknown claims, demands, actions, causes of action, suits, appeals, debts, charges, complaints, liabilities, grievances, obligations, expectancies, representations, promises, agreements,

controversies, damages, expenses, and attorneys' fees arising out of or in any way related to her vacation leave entitlement on or before the execution date of this Agreement.

4. This shall be a one-time only Agreement and shall not be precedent setting in any subsequent matter.
5. This Agreement does not constitute, nor shall it be construed as, an admission of liability or wrongdoing by any Party, and it shall not be evidence in any subsequent matter.
6. Ms. Dankowski agrees to keep this Agreement and its terms confidential and not publicize, or cause or permit to be disseminated, any of the terms of this Agreement, except to Ms. Dankowski's spouse, tax preparer, attorneys; and as required under the law.

RITA DANKOWSKI

Rita Dankowski
Name:

Date: 8-11-22

BRECKSVILLE-BROADVIEW HEIGHTS
CITY SCHOOL DISTRICT

By: _____
Name: Joelle Magyar
Title: Superintendent

Date: _____

By: _____
Name: Craig Yaniglos
Title: Treasurer/CFO

Date: _____